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POLICYHOLDER NOTICE

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National Union Fire Insurance Company of Pittsburgh, Pa.[®]
A capital stock company
(the "Insurer")

POLICY NUMBER: 01-546-82-19

REPLACEMENT OF POLICY NUMBER: 01-436-42-51

Fiduciary Liability Insurance EdgeSM
Employee Benefit Plan Fiduciary Liability Insurance Policy

NOTICES: This policy provides claims-made coverage. Such coverage is generally limited to liability for (i) Claims first made against Insureds, (ii) Voluntary Compliance Loss first assessed by or against an Insured, (iii) Pension Crises first occurring, in each case, during the Policy Period or, if applicable, the Discovery Period. Coverage under this policy is conditioned upon notice being timely provided to the Insurer as required (see the Notice and Reporting clause for details). Covered Defense Costs shall reduce the Limits of Liability available to pay judgments or settlements, and shall be applied against the Retention amount. The Insurer has the duty to defend; however, the Insured may elect to assume the duty to defend. In all events, the Insurer must advance Defense Costs payments pursuant to the terms herein prior to the final disposition of a Claim. Please read this policy carefully and review its coverage with your insurance agent or broker.

DECLARATIONS

1. **NAMED SPONSOR:** ANIXA BIOSCIENCES, INC.

Named Sponsor Address: 3150 ALMADEN EXPY STE 250
SAN JOSE, CA 95118-1250

2. **POLICY PERIOD:** From: June 16, 2025 To: June 16, 2026

The Policy Period incepts and expires as of 12:01 A.M. at the **Named Sponsor Address**.

3. **PREMIUM:** \$2,600

4. **LIMIT OF LIABILITY** (for all **Loss** in the aggregate including **Defense Costs**): \$1,000,000

5. **SUBLIMITS OF LIABILITY** (All sublimits of liability shall be part of, and not in addition to, the **Limit of Liability** set forth in Item 4 of the Declarations):

(a) Voluntary Compliance Loss:	\$250,000 or 5% of the policy aggregate Limit of Liability , whichever is less
(b) Section 502(c) Penalties:	\$250,000 or 5% of the policy aggregate Limit of Liability , whichever is less
(c) Pension Protection Act Penalties:	\$250,000 or 5% of the policy aggregate Limit of Liability , whichever is less
(d) HIPAA Penalties:	\$1.5 million or the policy aggregate Limit of Liability , whichever is less
(e) Health Care Reform Penalties:	\$250,000 or 5% of the policy aggregate Limit of Liability , whichever is less

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DECLARATIONS (Continued)

(f) Section 4975 Penalties:	\$250,000
(g) Pension CrisisFundSM:	\$100,000

6. **RETENTION:** Not applicable to: (i) **Non-Indemnifiable Loss**, (ii) **Pension Crisis Loss**, (iii) **Voluntary Compliance Loss**, (iv) **Section 502(c) Penalties**, (v) **Pension Protection Act Penalties**, (vi) **HIPAA Penalties**, (vii) **Health Care Reform Penalties**, (viii) **Section 4975 Penalties**, or (ix) the first \$25,000 in **Defense Costs** incurred for **E-Discovery Consultant Services**.

(a) **Securities Retention:** *\$25,000*

(b) All other **Loss** to which a Retention applies : *\$25,000*

If the **Sponsor Organization** and the relevant **Plan** fail or refuse to satisfy an applicable Retention, this policy shall advance the **Loss** of an **Insured Person** pursuant to the Advancement Clause.

7. INSURER

(a) **INSURER ADDRESS:** *1271 Ave of the Americas, FL 37
New York, NY 10020-1304*

(b) **CLAIMS ADDRESS:** By E-Mail: c-claim@AIG.com
By Mail: *AIG, Financial Lines Claims
P.O. Box 25947
Shawnee Mission, KS 66225*

In either case, reference the Policy Number.

8. CONTINUITY DATE

All coverages: *August 1, 2024*

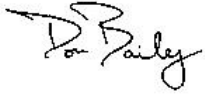
9. TRIA PREMIUM, TAXES AND SURCHARGES

(a) TRIA Premium: *\$0*

TRIA Premium means the premium for Certified Acts of Terrorism Coverage under Terrorism Risk Insurance Act, as amended. Amount indicated above is included in **Premium**. A copy of the TRIA disclosure sent with the original quote is attached hereto.

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IN WITNESS WHEREOF, the Insurer has caused this Policy to be signed by its President, Secretary and Authorized Representative. This Policy shall not be valid unless signed below at the time of issuance by an authorized representative of the insurer.



PRESIDENT



SECRETARY



AUTHORIZED REPRESENTATIVE

MARSH & MCLENNAN AGENCY LLC
250 PEHLE AVENUE
STE. 400
SADDLE BROOK, NJ 07663

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POLICYHOLDER DISCLOSURE
NOTICE OF TERRORISM INSURANCE COVERAGE
(COVERAGE INCLUDED)

Coverage for acts of terrorism is included in your policy. You are hereby notified that under the Terrorism Risk Insurance Act, as amended in 2015, the definition of act of terrorism has changed. As defined in Section 102(1) of the Act: The term “act of terrorism” means any act that is certified by the Secretary of the Treasury—in consultation with the Secretary of Homeland Security, and the Attorney General of the United States—to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of certain air carriers or vessels or the premises of a United States mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion. Under your coverage, any losses resulting from certified acts of terrorism may be partially reimbursed by the United States Government under a formula established by the Terrorism Risk Insurance Act, as amended. However, your policy may contain other exclusions which might affect your coverage, such as an exclusion for nuclear events. Under the formula, the United States Government generally reimburses 85% through 2015; 84% beginning on January 1, 2016; 83% beginning on January 1, 2017; 82% beginning on January 1, 2018; 81% beginning on January 1, 2019 and 80% beginning on January 1, 2020 of covered terrorism losses exceeding the statutorily established deductible paid by the insurance company providing the coverage. The Terrorism Risk Insurance Act, as amended, contains a \$100 billion cap that limits U.S. Government reimbursement as well as insurers’ liability for losses resulting from certified acts of terrorism when the amount of such losses exceeds \$100 billion in any one calendar year. If the aggregate insured losses for all insurers exceed \$100 billion, your coverage may be reduced.

The portion of your annual premium that is attributable to coverage for acts of terrorism is \$0, and does not include any charges for the portion of losses covered by the United States government under the Act.

Fiduciary Liability Insurance EdgeSM

EMPLOYEE BENEFIT PLAN FIDUCIARY LIABILITY INSURANCE POLICY

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In consideration of the payment of the premium and each of their respective rights and obligations in this policy, the **Insureds** and the **Insurer** agree as follows:

1. INSURING AGREEMENTS

Coverage for **Loss** under this policy is provided solely with respect to: (i) **Claims** first made against an **Insured**; (ii) **Voluntary Compliance Losses** first ascertained by or assessed against an **Insured**; and (iii) **Pension Crises** first occurring, in each such event, during the **Policy Period** or any applicable **Discovery Period** and reported to the **Insurer** as required by this policy. **Claims** that are fact-finding investigations which do not allege a **Wrongful Act** and **Claims** that are **Internal Appeals** shall each be deemed first made when they are reported. Subject to the foregoing and the other terms, conditions, and limitations of this policy, this policy affords the following coverage:

A. *Insured Person Coverage*

This policy shall pay the **Loss** of any **Insured Person** that no **Sponsor Organization** or **Plan** has indemnified or paid that arises from any **Claim**:

- (1) made against such **Insured Person** for any **Wrongful Act** of such **Insured Person**; or
- (2) that is a fact-finding investigation which does not allege in writing a **Wrongful Act** or that is an **Internal Appeal**, if an **Insured** elects to give notice.

B. *Insured Person Indemnification Coverage*

This policy shall pay the **Loss** of a **Sponsor Organization** or **Plan** that arises from any **Claim**:

- (1) made against any **Insured Person** for any **Wrongful Act** of such **Insured Person**; or
- (2) that is a fact-finding investigation which does not allege in writing a **Wrongful Act** or that is an **Internal Appeal**, if an **Insured** elects to give notice;

but only to the extent that such **Sponsor Organization** or **Plan** has indemnified such **Loss** of, or paid such **Loss** on behalf of, the **Insured Person**.

C. *Sponsor Organization And Plan Coverage*

This policy shall pay the **Loss** of any **Sponsor Organization** or **Plan** arising from any **Claim**:

- (1) made against such **Sponsor Organization** or **Plan** for any **Wrongful Act** of such **Sponsor Organization** or **Plan** (or of any employee for whom such **Sponsor Organization** is legally responsible); or
- (2) that is a fact-finding investigation which does not allege in writing a **Wrongful Act** or that is an **Internal Appeal**, if an **Insured** elects to give notice.

D. *Voluntary Compliance Loss Coverage*

This policy shall pay any **Voluntary Compliance Loss** first ascertained by or assessed against an **Insured**, subject to the aggregate sublimit of liability set forth on the Declarations.

The payment of any **Voluntary Compliance Loss** under this policy shall not waive any of the **Insurer's** rights under this policy or at law, including in the event that circumstances giving rise to such **Voluntary Compliance Loss** result in a **Claim**.

E. Pension CrisisFundSM Coverage

This policy shall pay the **Pension Crisis Loss** of a **Sponsor Organization** up to the **Insured's** aggregate sublimit of liability for all **Pension Crisis Loss** under the **Pension CrisisFundSM** set forth in the Declarations.

The payment of any **Pension Crisis Loss** under this policy shall not waive any of the **Insurer's** rights under this policy or at law, including in the event that circumstances giving rise to such **Pension Crisis Loss** result in a **Claim**.

2. EXTENSIONS

A. Disproven Allegation Protection

In the event that an allegation which triggers potential coverage under this policy is disproven, so that a **Claim** is outside the scope of coverage under this policy, the **Insurer** shall not seek recovery of amounts that it has previously paid. Situations that would trigger this protection include, but are not limited to when it is proven that:

- (1) an **Executive** or employee of the **Sponsor Organization** who was alleged to be a **Plan** fiduciary was not in fact a **Plan** fiduciary;
- (2) an **Insured's** alleged breach of fiduciary duty was in fact a settlor act;
- (3) an alleged **Plan** was not a plan or was not a covered **Plan**; or
- (4) a **Sponsor Organization** alleged to be the sponsor of a **Plan** was not in fact the sponsor of such plan.

B. Independent Fiduciary Fees

Loss shall include reasonable and necessary fees and expenses of an independent fiduciary if such fiduciary is retained to review a proposed settlement of a covered **Claim**. **Loss** shall also include reasonable and necessary fees and expenses of any law firm hired by such independent fiduciary to facilitate a review of such proposed settlement.

C. Managed Care Coverage

This policy shall pay the **Loss** of an **Insured** arising from a **Claim** made against such **Insured** alleging improper or negligent selection of a **Managed Care Services** provider or denial or delay of any benefit under a health care, pharmaceutical, vision, or dental **Plan** of an **Insured**.

D. LMRA Coverage

If, and during the time that, coverage is provided under this policy, then this policy shall also pay the **Loss** of an **Insured** arising from an allegation that such **Insured** violated Section 301 of the Labor Management Relations Act ("LMRA") relating to alleged violations of collectively bargained contracts in connection with a **Plan**.

E. First Dollar E-Discovery Consultant Services

For any **Claim**, no Retention shall apply to the first \$25,000 in **Defense Costs** incurred for **E-Discovery Consultant Services**.

F. Spousal, Domestic Partner And Legal Representative Extension

If a **Claim** against an **Insured Person** includes a **Claim** against: (i) the lawful spouse or legally recognized domestic partner of such **Insured Person**; or (ii) a property interest of such spouse or domestic partner, and such **Claim** arises from any actual or alleged **Wrongful Act** of such **Insured Person**, this policy shall pay covered **Loss** arising from the **Claim** made against such spouse or domestic partner or the property of such spouse or domestic partner to the extent that such **Loss** does not arise from a **Claim** for any actual or alleged act, error or omission of such spouse or domestic partner.

This policy shall pay covered **Loss** arising from a **Claim** made against the estates, heirs, or legal representatives of any deceased **Insured Person**, and the legal representatives of any **Insured Person** in the event of incompetence, insolvency or bankruptcy, who was an **Insured Person** at the time the alleged **Wrongful Acts** upon which such **Claim** is based were alleged to have been committed.

G. Worldwide & Cross-Border

Worldwide Territory

The coverage afforded by this policy shall apply anywhere in the world.

Global Liberalization

For **Loss** from that portion of any **Claim** maintained in a **Foreign Jurisdiction** or to which the law of a **Foreign Jurisdiction** is applied, the **Insurer** shall apply the terms and conditions of this policy as amended to include those of the **Foreign Policy** in the **Foreign Jurisdiction** that are more favorable to **Insureds** in the **Foreign Jurisdiction**.

This *Global Liberalization Clause* shall not apply to any provision of or endorsement to the policy that has worldwide effect, any provision addressing limits of liability (primary, excess or sublimits), retentions, other insurance, non-renewal, duty to defend, defense within or outside the limits, taxes, conformance to law or excess liability coverage, any claims made provisions, and any provision that excludes or limits coverage for specific events or litigation.

3. PROTECTIONS WHEN INDEMNIFICATION IS UNAVAILABLE

A. Advancement

If for any reason (including, but not limited to insolvency) a **Sponsor Organization** and the relevant **Plan** fail or refuse to advance, pay or indemnify covered **Loss** of an **Insured Person** within the applicable Retention, if any, then the **Insurer** shall advance such amounts on behalf of the **Insured Person** until either (i) a **Sponsor Organization** or **Plan** has agreed to make such payments, or (ii) the Retention has been satisfied. In no event shall any such advancement by the **Insurer** relieve any **Sponsor Organization** or any relevant **Plan** of any duty it may have to provide advancement, payment or indemnification to any **Insured Person**.

Advancement, payment or indemnification of an **Insured Person's Loss** by the **Sponsor Organization** or **Plan** is deemed "failed" if it has been requested by an **Insured Person** in writing and has not: been provided; agreed to be provided; or acknowledged as an obligation by a **Sponsor Organization** or **Plan** within sixty (60) days of such request; and advancement,



payment or indemnification by the **Sponsor Organization** or **Plan** is deemed "refused" if such **Sponsor Organization** or **Plan** gives a written notice of the refusal to the **Insured Person**. Advancement, payment or indemnification of an **Insured Person's Loss** by the **Sponsor Organization** or **Plan** shall only be deemed "failed" or "refused" to the extent such advancement, payment or indemnification is not: provided; agreed to be provided; or acknowledged by and collectible from any **Sponsor Organization** or **Plan**. Any payment or advancement by the **Insurer** within an applicable Retention shall apply toward the exhaustion of the **Limits of Liability**.

B. Order Of Payments

If there is a **Loss** arising from a covered **Claim** for which payment is due under the provisions of this policy, then the **Insurer** shall in all events:

- (1) First, pay all Loss covered under Insuring Agreement A. *Insured Person Coverage* ;
- (2) Second, only after payment of **Loss** has been made pursuant to subparagraph (1) above and to the extent that any amount of the **Limit of Liability** shall remain available, at the written request of the chief executive officer of the **Named Sponsor**, either pay or withhold payment of **Loss** covered under Insuring Agreement B. *Indemnification Of Insured Person Coverage*; and
- (3) Lastly, only after payment of **Loss** has been made pursuant to subparagraphs (1) and (2) above and to the extent that any amount of the **Limit of Liability** shall remain available, at the written request of the chief executive officer of the **Named Sponsor**, either pay or withhold payment of **Loss** covered under Insuring Agreement C. *Sponsor Organization and Plan Coverage*, Insuring Agreement D. *Voluntary Compliance Loss Coverage*, and Insuring Agreement E. *Pension CrisisFundSM Coverage*.

In the event the **Insurer** withholds payment pursuant to subparagraph (2) or (3) above, then the **Insurer** shall, at such time and in such manner as set forth in instructions of the chief executive officer of the **Named Sponsor**, remit such payment to or on behalf of an **Insured**.

C. Bankruptcy And Insolvency

Bankruptcy or insolvency of any **Insured** shall not relieve the **Insurer** of any of its obligations under this policy.

In such event, the **Insurer** and each **Insured** agree to cooperate in any efforts by the **Insurer** or any **Insured** to obtain relief for the benefit of the **Insured Persons** from any stay or injunction applicable to the distribution of the policy proceeds.

4. DEFENSE AGREEMENTS

A. Insurer's Duty to Defend

Except as hereinafter stated, the **Insurer** shall have both the right and duty to defend any **Claim** against an **Insured** alleging a **Wrongful Act**, even if such **Claim** is groundless, false or fraudulent.

The **Insured** shall have the right to effectively associate with the **Insurer** in the defense of any **Claim**, including, but not limited to negotiating a settlement, subject to the provisions of this Clause 4. The **Insurer** shall not, however, be obligated to defend any **Claim** after the **Limit of Liability** has been exhausted.

B. Insured's Option to Assume Defense

Notwithstanding the above, the **Insureds** shall have the right to assume the defense of any **Claim** made against them. This right shall be exercised in writing by the **Named Sponsor** on behalf of all **Insureds** within sixty (60) days of the reporting of the **Claim** to the **Insurer**. Upon receipt of such written request, the **Insurer** shall tender the defense of the **Claim** to the **Insureds**. Once the defense has been so tendered, the **Insurer** cannot re-assume the defense of the **Claim**. The **Insurer** shall have the right, but not the obligation, to effectively associate with the **Insureds** in the defense of any **Claim** that involves or appears reasonably likely to involve the **Insurer**, including, but not limited to negotiating a settlement. Provided that the **Insurer** shall be permitted to effectively associate with the **Insureds** in the defense of any **Claim**, the **Insurer's** consent to settlements, stipulated judgments and **Defense Costs** shall not be unreasonably withheld.

C. Advancement of Defense Costs

If the **Insureds** against whom a **Claim** is made exercise their right to assume the defense of such **Claim**, the **Insurer** shall advance, excess of any applicable Retention, covered **Defense Costs**, on a current basis, but no later than ninety (90) days after the **Insurer** has received itemized bills for those **Defense Costs**. Such advance payments by the **Insurer** shall be repaid to the **Insurer** by each and every **Insured**, severally according to their respective interests, in the event and to the extent that any such **Insured** shall not be entitled under this policy to payment of such **Loss**.

D. Claims Participation and Cooperation

The **Insureds** shall give the **Insurer** full cooperation and such information as it may reasonably require.

The failure of any **Insured** to give the **Insurer** cooperation and information as it may reasonably require shall not impair the rights of any **Insured Person** under this policy.

The **Insureds** shall contest any **Claim** made against them and shall not admit or assume any liability, enter into any settlement agreement, stipulate to any judgment or incur any **Defense Costs**, without the prior written consent of the **Insurer**.

E. Full Settlement Within Retention/ Consent Waived

If all **Insured** defendants are able to dispose of all **Claims** which are subject to one Retention (inclusive of **Defense Costs**) for an amount not exceeding the Retention, then the **Insurer's** consent shall not be required for such disposition.

F. Applicability

This *Defense Agreements Clause* is not applicable to **Pension Crisis Loss**.

5. EXCLUSIONS

A. Full Severability Of Exclusions

In determining whether any of the exclusions set forth in Clause 5.B. below apply, the **Wrongful Acts** of any **Insured** shall not be imputed to any other **Insured**.

B. Exclusions

The **Insurer** shall not be liable to make any payment for **Loss**, other than **Pension Crisis Loss**, in connection with any **Claim** made against an **Insured**:

- (1) *Conduct* arising out of, based upon or attributable to any:
 - (a) profit or advantage to which the **Insured** was not legally entitled; or
 - (b) deliberate criminal or deliberate fraudulent act, or any knowing or willful violation of any statute, rule or law, including, but not limited to **Employee Benefit Law**, by the **Insured**;
 if established by any final, non-appealable adjudication in any action or proceeding other than an action or proceeding initiated by the **Insurer** to determine coverage under the policy;
- (2) *Pending & Prior Litigation* alleging, arising out of, based upon or attributable to, as of the **Continuity Date**, any pending or prior: (a) litigation; or (b) administrative or regulatory proceeding or investigation of which any **Insured** had notice; or alleging or derived from the same or essentially the same facts as alleged in such pending or prior litigation or administrative or regulatory proceeding or investigation;
- (3) *Discrimination* for discrimination in violation of any law, except that this exclusion shall not apply to discrimination in violation of **Employee Benefit Law**;
- (4) *Bodily Injury & Property Damage* for bodily injury, sickness, disease, or death of any person, or damage to or destruction of any tangible property, including the loss of use thereof; provided, however, this exclusion shall not apply to: (a) **Defense Costs** incurred in the defense of a **Claim** for a violation of **ERISA** by an **Insured**; or (b) the coverage afforded under Extension 2.C., *Managed Care Coverage*; or
- (5) *Prior Notice* alleging, arising out of, based upon or attributable to the facts alleged, or to the same or related **Wrongful Act** alleged or contained, in any claim which has been reported, or in any circumstances of which notice has been given under any employee benefit plan fiduciary liability insurance policy in force prior to the inception date of this policy.

6. RETENTION

No Retention shall be applied to the following: (i) **Non-Indemnifiable Loss**; (ii) **Pension Crisis Loss**; (iii) **Voluntary Compliance Loss**; (iv) **Section 502(c) Penalties**; (v) **Pension Protection Act Penalties**; (vi) **HIPAA Penalties**; (vii) **Health Care Reform Penalties**; (viii) **Section 4975 Penalties**, or (ix) the first \$25,000 in **Defense Costs** incurred for **E-Discovery Consultant Services**.

Except as provided above for each **Claim** the **Insurer** shall only be liable for the amount of covered **Loss** that is in excess of the applicable Retention set forth on the Declarations or in any endorsement to this policy. Amounts within the Retention shall remain uninsured.

A single Retention shall apply to **Loss** arising from all related **Claims**. In the event a **Claim** triggers more than one Retention, then, as to such **Claim**, the highest of such Retentions shall be deemed the Retention applicable to **Loss** arising from such **Claim**, unless this policy expressly provides otherwise.

7. LIMITS OF LIABILITY

The **Limit of Liability** stated in the Declarations is the aggregate limit of the **Insurer's** liability for all **Loss** (including **Defense Costs**) under this policy. The **Limit of Liability** and all sublimits of liability are collectively referred to in this policy as the "**Limits of Liability**."

Each sublimit of liability in this policy is the maximum limit of the **Insurer's** liability for all **Loss** under this policy that is subject to that sublimit of liability. All sublimits of liability shall be part of, and not in addition to, the **Limit of Liability**.

The **Limits of Liability** for the **Discovery Period** shall be part of, and not in addition to, the **Limits of Liability** for the **Policy Period**. Further, all related **Claims** that are considered made or received during the **Policy Period** or **Discovery Period** pursuant to subparagraph C or D of Clause 8. *Notice And Reporting*, shall also be subject to the applicable **Limits of Liability** set forth in this policy.

Defense Costs are not payable by the **Insurer** in addition to the **Limits of Liability**. **Defense Costs** are part of **Loss** and as such are subject to the **Limits of Liability** for **Loss**.

8. NOTICE AND REPORTING

Notice hereunder shall be given in writing to the **Insurer** at the **Claims Address** indicated in the Declarations. If mailed or transmitted by electronic mail, the date of such mailing or transmission shall constitute the date that such notice was given and proof of mailing or transmission shall be sufficient proof of notice.

A. *Reporting a Claim or Pension Crisis*

The **Insured(s)** shall, as a condition precedent to the obligations of the **Insurer** under this policy, notify the **Insurer** in writing of a **Claim** made against an **Insured** or of a **Pension Crisis** as soon as practicable after: (1) the **Named Sponsor's** Risk Manager or General Counsel (or equivalent position) first becomes aware of the **Claim**; or (2) the **Pension Crisis** commences. In all such events, notification must be provided no later than:

- (i) sixty (60) days after the end of the **Policy Period** or the **Discovery Period** (if applicable) if this policy is not renewed with the **Insurer**; or
- (ii) two hundred and seventy (270) days after the end of the **Policy Period** or **Discovery Period** (if applicable); if the expiring policy is renewed with the **Insurer**.

As exceptions to the foregoing notice provision the **Insureds** shall have no obligation to give notice of:

- (1) a fact-finding investigation before the earliest of the time that: (i) it becomes a **Litigated Matter**; (ii) a **Wrongful Act** is alleged in writing; or (iii) any **Insured** has incurred defense costs for which coverage is being sought; or
- (2) an **Internal Appeal** before the earliest of the time that: (i) it becomes a **Litigated Matter**; (ii) any investment loss within a **Plan** is alleged; or (iii) any **Insured** has incurred defense costs for which coverage is being sought.

B. *Reporting Voluntary Compliance Loss and Covered Penalties*

The **Insured(s)** shall, as a condition precedent to the obligations of the **Insurer** under this policy, notify the **Insurer** in writing of a **Voluntary Compliance Loss** or of **Covered Penalties** as soon as practicable after such **Voluntary Compliance Loss** is first ascertained by or assessed against an **Insured**, or such **Covered Penalties** are first imposed, respectively, but in all such events no later than sixty (60) days after the end of the **Policy Period** or the **Discovery Period** (if applicable).

C. Relation Back to the First Reported Claim

Solely for the purpose of establishing whether any subsequent related **Claim** was first made during the **Policy Period** or **Discovery Period** (if applicable), if during any such period a **Claim** was first made and reported in accordance with Clause 8.A. above, then a **Claim** which is subsequently made against an **Insured** and that is reported to the **Insurer** which alleges, arises out of, is based upon or attributable to the facts alleged in the **Claim** for which such notice has been given, or alleges any **Wrongful Act** which is the same as or related to any **Wrongful Act** alleged in the **Claim** of which such notice has been given, shall be deemed to have been first made at the time that such previously reported **Claim** was first made.

With respect to any subsequent related **Claim**, this policy shall only cover **Loss** incurred after such subsequent related **Claim** is actually made against an **Insured**.

D. Relation Back to Reported Circumstances Which May Give Rise to a Claim

If during the **Policy Period** or **Discovery Period** (if applicable) an **Insured** becomes aware of and notifies the **Insurer** in writing of circumstances that may give rise to a **Claim** being made against an **Insured** and provides details as required below, then any **Claim** that is subsequently made against an **Insured** that arises from such circumstances and that is reported in accordance with Clause 8.A. above shall be deemed to have been first made at the time of the notification of circumstances for the purpose of establishing whether such subsequent **Claim** was first made during the **Policy Period** or during the **Discovery Period** (if applicable). Coverage for **Loss** arising from any such subsequent **Claim** shall only apply to **Loss** incurred after that subsequent **Claim** is actually made against an **Insured**. In order to be effective, notification of circumstances must specify the facts, circumstances, nature of the anticipated alleged **Wrongful Act** and reasons for anticipating such **Claim**, with dates, persons and entities potentially involved; however, notification that includes a copy of an agreement to toll a statute of limitations shall be presumed sufficiently specific as to the potential **Claims** described within that agreement.

9. DISCOVERY

Bilateral Discovery Options

Except as indicated below, if the **Named Sponsor** shall cancel or the **Named Sponsor** or the **Insurer** shall refuse to renew or replace this policy, the **Insureds** shall have the right to a period of one to six years following the effective date of such cancellation or nonrenewal (the "**Discovery Period**"), upon payment of the respective "**Additional Premium Amount**" described below, in which to give to the **Insurer** written notice pursuant to Clause 8.A. and Clause 8.D. of the policy of: (i) **Claims** first made against an **Insured**; and (ii) circumstances of which an **Insured** becomes aware, in either case, during said **Discovery Period** and solely with respect to a **Wrongful Act** that occurs prior to the end of the **Policy Period**.

Discovery Premium

The **Additional Premium Amount** for: (a) one year shall be no more than 125% of the **Full Annual Premium**; (b) two to six years shall be an amount to be determined by the **Insurer**. As used herein, "**Full Annual Premium**" means the premium level in effect immediately prior to the end of the **Policy Period**.

Transaction Option

In the event of a **Transaction**, the **Named Sponsor** shall have the right to request an offer from the **Insurer** of a **Discovery Period** (with respect to **Wrongful Acts** occurring prior to the effective time of the **Transaction**). The **Insurer** shall offer such **Discovery Period** pursuant to such terms, conditions, exclusions and additional premium as the **Insurer** may reasonably decide. In the event of a **Transaction**, the right to a **Discovery Period** shall not exist, other than as indicated in this paragraph.

The **Discovery Period** is not cancelable and the additional premium charged is non-refundable in whole or in part. This *Discovery Clause* shall not apply to any cancellation resulting from non-payment of premium. The rights contained in this *Discovery Clause* shall terminate unless written notice by any **Insured** of election of a **Discovery Period**, together with the additional premium due, is received by the **Insurer** no later than thirty (30) days subsequent to the effective date of the cancellation, nonrenewal or **Transaction**.

10. PANEL COUNSEL AND E-CONSULTANT FIRMS

A. Pre-Authorized Defense Attorneys

The list of pre-authorized defense firms ("**Panel Counsel**") is accessible through the online directory at <http://www.aig.com/us/panelcounseldirectory> under the "Fiduciary Liability (ERISA & Non-ERISA)" link. The list provides **Insureds** with a choice of law firms from which a selection of legal counsel shall be made to conduct the defense of any: (1) **Claim** brought by any government entity, or (2) **Claim** brought in the form of a class or representative action (collectively "**Designated Claim**").

In the event the **Insurer** is operating under a duty to defend pursuant to Clause 4.A. of this policy, then the **Insurer** shall select a **Panel Counsel** to defend the **Insureds** in a **Designated Claim**. Upon the written request of the **Named Sponsor**, the **Insurer** may consent to a different **Panel Counsel** selected by the **Named Sponsor** to defend the **Insureds**, which consent shall not be unreasonably withheld.

In the event the **Insureds** have assumed the defense of the **Claim** pursuant to Clause 4.B. of the policy, then the **Insureds** shall select a **Panel Counsel** to defend the **Insured** in a **Designated Claim**. In addition, with the express prior written consent of the **Insurer**, an **Insured** may select a **Panel Counsel** different from that selected by another **Insured** defendant if such selection is required due to an actual conflict of interest or is otherwise reasonably justifiable.

The selection of a **Panel Counsel** to defend a **Designated Claim** shall not be restricted to the jurisdiction in which the **Designated Claim** is brought.

The list of **Panel Counsel** may be amended from time to time by the **Insurer**. However, if a firm is removed from the list during the **Policy Period**, the **Insureds** shall be entitled to select such firm to conduct the defense of any **Designated Claim** made against such **Insureds** during the **Policy Period**.

B. Pre-Approved E-Consultant Firms

The list of pre-approved e-discovery consulting firms ("**E-Consultant Firms**") is accessible through the online directory at <http://www.aig.com/us/panelcounseldirectory> under the "e-Consultant Panel Members" link. The list provides the **Insureds** with a choice of firms from which a selection of an **E-Consultant Firm** shall be made. Any **E-Consultant Firm** may be hired by an **Insured** to perform **E-Discovery Consultant Services** without further approval by the **Insurer**.

11. CHANGES TO INSUREDS

A. Transactions

In the event of a **Transaction** during the **Policy Period**, this policy shall continue in full force and effect as to **Wrongful Acts** occurring prior to the effective time of the **Transaction**, but there shall be no coverage afforded by any provision of this policy for any **Wrongful Act** alleged to have occurred after the effective time of the **Transaction**. This policy may not be canceled after the effective time of the **Transaction** and no portion of the premium paid for this policy shall be refundable. The **Named Sponsor** shall also have the right to an offer by the **Insurer** of a **Discovery Period** described in the *Transaction Option* paragraph of Clause 9. *Discovery*.

B. Former Subsidiaries

In the event the **Named Sponsor** ceases to have **Management Control** of a **Subsidiary** during or prior to the **Policy Period**, coverage with respect to such **Subsidiary** and its **Insured Persons** shall continue until termination of this policy, but only with respect to **Claims** for **Wrongful Acts** that occurred or are alleged to have occurred during the time that the **Named Sponsor** had **Management Control** of such entity either directly or indirectly through one or more of its **Subsidiaries**.

C. Scope Of Subsidiary Coverage

Coverage as is afforded under this policy with respect to a **Claim** made against any **Subsidiary** and/or any **Insured** thereof shall only apply for **Wrongful Acts** committed or allegedly committed during the time that such **Subsidiary** and **Insured** meet the respective definitions of **Subsidiary** and **Insured** set forth in this policy.

D. Scope Of Plan Coverage

Coverage as is afforded under this policy with respect to a **Claim** made against any **Plan** shall only apply for **Wrongful Acts** that occurred or that are alleged to have occurred prior to the date any such **Plan** was sold, spun-off, transferred or terminated or prior to the date that the **Sponsor Organization** or **Insured Person** ceases to be a fiduciary or ceases his, her or its **Administration** of a sold, spun-off or transferred **Plan**, or in the case of a terminated **Plan**, prior to the final date of asset distribution of such **Plan**.

12. APPLICATION AND UNDERWRITING

A. Application And Reliance

The **Insurer** has relied upon the accuracy and completeness of the statements, warranties and representations contained in the **Application**. All such statements, warranties and representations are the basis for this policy and are to be considered as incorporated into this policy.

B. Insured Person Coverage Non-Rescindable

Under no circumstances shall the coverage provided by this policy for **Loss** under Insuring Agreement A. *Insured Person Coverage* be deemed void, whether by rescission or otherwise, once the premium has been paid.

C. Severability Of The Application

The **Application** shall be construed as a separate application for coverage by each **Insured Person**. With respect to the **Application**, knowledge possessed by any **Sponsor Organization** or any **Insured Person** shall not be imputed to any other **Insured Person**.

If the statements, warranties and representations in the **Application** were not accurate and complete and materially affected either the acceptance of the risk or the hazard assumed by the **Insurer** under the policy, then the **Insurer** shall have the right to void coverage under this policy, *ab initio*, with respect to:

(1) **Loss** under Insuring Agreement B. *Indemnification Of Insured Person Coverage* for the indemnification of any **Insured Person** who knew, as of the inception date of the **Policy Period**, the facts that were not accurately and completely disclosed; and

(2) **Loss** under Insuring Agreement C. *Sponsor Organization and Plan Coverage* if:

- (i) the person who executed the **Application**; or
- (ii) any past or present chief executive officer or chief financial officer of the **Named Sponsor**,

knew, as of the inception date of the **Policy Period**, the facts that were not accurately and completely disclosed.

The foregoing applies even if the **Insured Person** did not know that such incomplete or inaccurate disclosure had been provided to the **Insurer** or included within the **Application**.

13. GENERAL TERMS AND CONDITIONS

A. Payments And Obligations Of Sponsor Organizations And Others

1. INDEMNIFICATION BY SPONSOR ORGANIZATIONS

The **Sponsor Organization** agrees to indemnify the **Insured Persons** and/or advance **Defense Costs** to the fullest extent permitted by law. If the **Insurer** pays under this policy any indemnification or advancement owed to any **Insured Person** by any **Sponsor Organization** within an applicable Retention, then that **Sponsor Organization** shall reimburse the **Insurer** for such amounts and such amounts shall become immediately due and payable as a direct obligation of the **Sponsor Organization** to the **Insurer**. The failure of a **Sponsor Organization** to perform any of its obligations to indemnify the **Insured Persons** and/or advance **Defense Costs** under this policy shall not impair the rights of any **Insured Person** under this policy.

2. OTHER INSURANCE AND INDEMNIFICATION

Such insurance as is provided by this policy shall apply only as excess over any other valid and collectible insurance, unless such other insurance is specifically written as excess insurance over the **Limit of Liability** provided by this policy. This policy shall specifically be excess of any other valid and collectible insurance pursuant to which any other insurer has a duty to defend a **Claim** for which this policy may be obligated to pay **Loss**. Such insurance as is provided by this policy shall apply as primary to any personal "umbrella" excess liability insurance purchased by an **Insured Person**.

3. SUBROGATION AND WAIVER OF RECOURSE

To the extent of any payment under this policy, the **Insurer** shall be subrogated to all of the **Insureds'** rights of recovery. Each **Insured** shall execute all papers reasonably required and provide reasonable assistance and cooperation in securing or enabling the **Insurer** to exercise subrogation rights or any other rights, directly or in the name of the **Insureds**.

In no event, however, shall the **Insurer** exercise its rights of subrogation against an **Insured** under this policy unless the Conduct Exclusion applies with regard to such **Insured**.

In the event that this policy has been purchased by an **Insured** other than a **Plan**, it is agreed that the **Insurer** waives its right of recourse against the **Insured** under Section 410(b)(1) of ERISA as amended.

4. RECOVERY OF LIMITS

In the event the **Insurer** recovers amounts it paid under this policy, the **Insurer** will reinstate the **Limits of Liability** of this policy to the extent of such recovery, less its costs incurred in administering and obtaining such recovery. The **Insurer** assumes no duty to seek a recovery of any amounts paid under this policy.

B. Cancellation

The **Named Sponsor** may cancel this policy at any time by mailing written prior notice to the **Insurer** or by surrender of this policy to the **Insurer** or its authorized agent. This policy may only be canceled by or on behalf of the **Insurer** in the event of non-payment of premium by the **Named Sponsor**. In the event of non-payment of premium by the **Named Sponsor**, the **Insurer** may cancel this policy by delivering to the **Named Sponsor** or by mailing to the **Named Sponsor**, by registered, certified, or other first class mail, at the **Named Sponsor Address**, written notice stating when, not less than fifteen (15) days thereafter, the cancellation shall be effective. The proof of mailing of such notice shall be sufficient proof of notice. The **Policy Period** terminates at the date and hour specified in such notice, or at the date and time of surrender. The **Insurer** shall have the right to the premium amount for the portion of the **Policy Period** during which the policy was in effect. If the **Named Sponsor** shall cancel this policy, the **Insurer** shall retain the *pro rata* proportion of the premium herein.

C. Notice And Authority

The **Named Sponsor** shall act on behalf of each and every **Insured** with respect to the giving of notice of a **Claim, Voluntary Compliance Loss, Pension Crisis**, or circumstance, the giving and receiving of notice of cancellation, the payment of premiums and the receiving of any return premiums that may become due under this policy, and the receipt and acceptance of any endorsements issued to form a part of this policy and the exercising or declining of any right to a **Discovery Period**; provided, however, that the foregoing shall not limit the ability of any **Insured** to provide notice of a **Claim, Voluntary Compliance Loss, Pension Crisis** or circumstance in accordance with Clause 8. *Notice And Reporting*, or to elect discovery and pay the **Additional Premium Amount** (as defined in Clause 9. *Discovery*).

D. Currency

All premiums, limits, retentions, **Loss** and other amounts under this policy are expressed and payable in the currency of the United States of America. If judgment is rendered, settlement is denominated, or other elements of **Loss** are stated or incurred in a currency other than United States of America dollars, then payment of covered **Loss** due under this policy (subject to the terms, conditions and limitations of this policy) will be made either in such other currency (at the option of the **Insurer** and if agreeable to the **Named Sponsor**) or, in United States of

America dollars, at the rate of exchange published in The Wall Street Journal on the date the **Insurer's** obligation to pay such **Loss** is established (or if not published on such date the next publication date of The Wall Street Journal).

E. Assignment

This policy and any and all rights hereunder are not assignable without the written consent of the **Insurer**.

F. Action Against Insurer

No action shall lie against the **Insurer** unless, as a condition precedent thereto, there shall have been full compliance with all of the terms of this policy, or until the amount of the **Insured's** obligation to pay shall have been finally determined either by judgment against such **Insured** after actual trial or by written agreement of the **Insured**, the claimant and the **Insurer**.

Any **Insured** or the legal representative thereof who has secured such judgment or written agreement shall thereafter be entitled to recover under this policy to the extent of the insurance afforded by this policy. No person or organization shall have any right under this policy to join the **Insurer** as a party to any action against any **Insured** or **Sponsor Organization** to determine the **Insured's** liability, nor shall the **Insurer** be impleaded by any **Insured Person**, his or her spouse or legally recognized domestic partner, any **Sponsor Organization** or any legal representative of the foregoing.

G. Conformance To Law

In the event that there is an inconsistency between: (i) any period of limitation in this policy relating to the giving of notice of cancellation or discovery/extended reporting election, and (ii) the minimum or maximum period required by applicable law, where such law allows, the Insurer will resolve the inconsistency by applying the notice period that is more favorable to the **Insureds**. Otherwise, the notice period is hereby amended to the extent necessary to conform to applicable law.

Coverage under this policy shall not be provided to the extent prohibited by any law.

H. Headings

The descriptions in the headings and the Guide of this policy are solely for convenience, and form no part of the terms and conditions of coverage.

14. DEFINITIONS

Terms with "**Bold**" typeface are used in this policy with the meanings and values ascribed to them below or in the Declarations:

Administration	means, with respect to a Plan , counseling employees, participants, and beneficiaries; providing interpretations; handling of records; determining and calculating benefits; preparing, distributing or filing required notices or documents; or activities affecting enrollment, termination or cancellation of employees, participants, and beneficiaries under the Plan .
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Application

means:

- (1) the written statements and representations made by an **Insured** and provided to the **Insurer** during the negotiation of this policy, or contained in any application or other materials or information provided to the **Insurer** in connection with the underwriting of this policy;
- (2) all warranties executed by or on behalf of an **Insured** and provided to the **Insurer** in connection with the underwriting of this policy or the underwriting of any other employee benefit plan fiduciary liability policy (or equivalent) issued by the **Insurer**, or any of its affiliates, of which this policy is a renewal, replacement or which it succeeds in time; and
- (3) each and every public filing by or on behalf of a **Sponsor Organization** made with any federal, state, local or foreign regulatory agency (including, but not limited to the U.S. Securities and Exchange Commission and the U.S. Department of Labor ("DOL"), CPA-audited financial statements for all **Plans**, with investment portfolios, Form 5500's and any attachments thereto for all **Plans**, any financial information in such filings, and any certifications relating to the accuracy of the foregoing), provided that such public filing was filed during the twelve (12) month period immediately preceding the inception of the **Policy Period**.

Benefits

means any obligation under a **Plan** to a **Plan** participant or beneficiary that is a payment of money or property; or any privilege, right, option or perquisite.

Claim

means:

- (1) a written demand for monetary, non-monetary or injunctive relief, other than an initial application for benefits;
- (2) a civil, criminal or arbitration proceeding for monetary, non-monetary or injunctive relief which is commenced by:
 - (i) service of a complaint or similar pleading (in the case of a civil proceeding);
 - (ii) return of an indictment, information or similar document (in the case of a criminal proceeding); or
 - (iii) receipt or filing of a notice of charges; or
- (3) a formal agency or regulatory adjudicative proceeding to which an **Insured** is subject;
- (4) any fact-finding investigation, whether or not a **Wrongful Act** is alleged, by the DOL or the Pension Benefit Guaranty Corporation ("PBGC") or any similar governmental authority located outside the United States, including, but not limited to the United Kingdom's Pensions Ombudsman or Pensions Regulator;
- (5) any written request to toll a statute of limitations which may be applicable to any Claim that may be made for any **Wrongful Act** of any **Insured**; or
- (6) any **Internal Appeal**.

"**Claim**" shall include any **Securities Claim**.



Corporate Trustee Company	means any corporation formed and operating outside of the United States of America established by the Sponsor Organization and duly appointed to act as a trustee of a Plan .
Covered Penalties	means solely in connection with a Plan :
(i) <i>Section 502(i)</i>	the 5% or less civil penalty imposed upon an Insured under Section 502(i) of ERISA ;
(ii) <i>Section 502(l)</i>	the 20% or less civil penalty imposed upon an Insured under Section 502(l) of ERISA , with respect to a covered settlement or judgment;
(iii) <i>United Kingdom</i>	the civil fines and penalties assessed against an Insured by either the United Kingdom's Pensions Ombudsman or the Pensions Regulator or any successor body thereto;
(iv) <i>Voluntary Compliance Loss</i>	Voluntary Compliance Loss subject to the aggregate sublimit of liability set forth in the Declarations;
(v) <i>Section 502(c)</i>	the civil penalties under Section 502(c) of ERISA , other than penalties under the Pension Protection Act, subject to the aggregate sublimit of liability set forth in the Declarations (" Section 502(c) Penalties ");
(vi) <i>Pension Protection Act</i>	the civil penalties under the Pension Protection Act of 2006, subject to the aggregate sublimit of liability set forth in the Declarations (" Pension Protection Act Penalties ");
(vii) <i>HIPAA</i>	the civil penalties for violations of the privacy provisions of the Health Insurance Portability and Accountability Act of 1996 (" HIPAA "), subject to the aggregate sublimit of liability set forth in the Declarations (" HIPAA Penalties ");
(viii) <i>Health Care Reform</i>	the civil penalties imposed under rules and regulations (including interim final rules and regulations) provided by governmental agencies (including the U.S. Department of Health and Human Services, the U.S. Department of the Treasury, the U.S. Internal Revenue Service ("IRS"), and the DOL, the Office of Consumer Information and Insurance Oversight, and the Employee Benefits Security Administration), for inadvertent violations by an Insured of Health Care Reform Law , subject to the aggregate sublimit of liability set forth in the Declarations (" Health Care Reform Penalties "); and
(ix) <i>Section 4975</i>	the 15% or less tax penalty imposed upon an Insured under Section 4975 of the Internal Revenue Code of 1986, with respect to covered judgments, subject to the aggregate sublimit of liability set forth in the Declarations (" Section 4975 Penalties ").
Defense Costs	means reasonable and necessary fees, costs, and expenses consented to by the Insurer (including the cost of E-Discovery Consultant Services and premiums for any appeal bond, attachment bond or similar bond, but without any obligation to apply for or furnish any such bond) resulting solely from the investigation, adjustment, defense and/or appeal of a Claim against an Insured . Defense Costs shall not include the compensation of any Insured Person or any employee of an Insured .



E-Discovery

means the development, collection, storage, organization, cataloging, preservation and/or production of electronically stored information.

E-Discovery Consultant Services

means solely the following services performed by an **E-Consultant Firm** (as defined in Clause 10.B.):

- (1) assisting the **Insured** with managing and minimizing the internal and external costs associated with **E-Discovery**;
- (2) assisting the **Insured** in developing or formulating an **E-Discovery** strategy which shall include interviewing qualified and cost effective **E-Discovery** vendors;
- (3) serving as project manager, advisor and/or consultant to the **Insured**, defense counsel and the **Insurer** in executing and monitoring the **E-Discovery** strategy; and
- (4) such other services provided by the **E-Consultant Firm** that the **Insured**, **Insurer** and **E-Consultant Firm** agree are reasonable and necessary given the circumstances of the **Claim**.

Employee Benefit Law

means:

- (1) **ERISA** and any similar common or statutory law anywhere in the world (including, but not limited to the United Kingdom's Pensions Act 2004, Pensions Act 1995, and Pension Schemes Act 1993; and the Pension Benefit Standards Act, 1985 of Canada), as amended, and any rules and regulations promulgated thereunder to which a **Plan** is subject; and
- (2) the privacy regulations under HIPAA; and solely with respect to subparagraph (2) of the definition of **Wrongful Act**, unemployment insurance, Social Security, government-mandated disability benefits or similar law.

In no event shall **Employee Benefit Law**, other than as set forth in subparagraph (2) above, include any law other than **ERISA** which concerns workers' compensation, unemployment insurance, Social Security, government-mandated disability benefits or similar law.

ERISA

means the Employee Retirement Income Security Act of 1974, as amended, including, but not limited to amendments pursuant to:

- (1) COBRA (the Consolidated Omnibus Budget Reconciliation Act of 1985);
- (2) HIPAA;
- (3) the Newborns' and Mothers' Health Protection Act of 1996;
- (4) the Mental Health Parity Act of 1996;
- (5) the Women's Health and Cancer Rights Act of 1998;
- (6) the Pension Protection Act of 2006; and
- (7) **Health Care Reform Law**;

and including any amendments thereto and regulations thereunder.



Executive	means any past, present and future duly elected or appointed director, officer, trustee or governor of a corporation, management committee member of a joint venture and member of the management board of a limited liability company (or equivalent position).
Foreign Jurisdiction	means any jurisdiction, other than the United States of America or any of its territories or possessions.
Foreign Policy	means the standard employee benefit plan fiduciary liability insurance policy (including all mandatory endorsements, if any) approved by the Insurer or any of its affiliates to be sold within a Foreign Jurisdiction that provides coverage substantially similar to the coverage afforded under this policy. If more than one such policy exists, then " Foreign Policy " means the standard basic policy form most recently offered for sale for comparable risks by the Insurer or any of its affiliates in that Foreign Jurisdiction . The term " Foreign Policy " shall not include any directors and officers, executive or partnership managerial, or professional liability insurance coverage.
Health Care Reform Law	means the Patient Protection and Affordable Care Act ("PPACA") and the Health Care and Education Reconciliation Act of 2010.
Insured	means any: (1) Insured Person; (2) Plan; (3) Sponsor Organization; (4) Plan Committee of a Sponsor Organization, in its capacity as a fiduciary or trustee of a Plan, or in its Administration of a Plan; or (5) Corporate Trustee Company.
Insured Person	means, solely with respect to a Plan , any past, present or future: (1) Executive or employee of a Sponsor Organization or of a Plan in his or her Administration of a Plan or in his or her capacity as a fiduciary or trustee of a Plan; (2) member of a pension committee of a Sponsor Organization in his, her, or its capacity as a fiduciary or in his, her, or its Administration of a Plan; (3) natural person in a position equivalent to a position listed in subparagraph (1) or (2) above in the event that the Sponsor Organization is operating in a Foreign Jurisdiction; or (4) former Executive or employee currently serving in a consulting or advisory capacity to a Plan if the Sponsor Organization provides indemnification to such individual in the same manner as is provided to other Insured Persons. "Insured Person" shall not include any individual in his or her capacity as an employee of any third party, including a service provider, other than a Corporate Trustee Company.



Internal Appeal	means an appeal of an adverse benefits determination by an Insured pursuant to the DOL's claim procedure regulation at 29 C.F.R. Section 2560.503-1(h) or similar claim procedures pursuant to applicable law.
Litigated Matter	means any civil, criminal, or arbitration proceeding for monetary, non-monetary or injunctive relief which is commenced by: (1) service of a complaint or similar pleading (in the case of a civil proceeding); or (2) return of an indictment, information or similar document (in the case of a criminal proceeding).
Loss	means damages, settlements, judgments (including pre/post-judgment interest on a covered judgment), Defense Costs, Voluntary Compliance Loss, Pension Crisis Loss and Covered Penalties; however, "Loss" shall not include: (1) civil or criminal fines or penalties other than Covered Penalties; (2) taxes or tax penalties other than Covered Penalties; (3) cleanup costs relating to hazardous materials, pollution or product defects; (4) any amounts for which an Insured is not financially liable or which are without legal recourse to an Insured; (5) wages, tips, and commissions; (6) Benefits, or that portion of any settlement or award in an amount equal to such Benefits, unless and to the extent that recovery of such Benefits is based upon a covered Wrongful Act and is payable as a personal obligation of an Insured Person; provided, however, that Loss shall include a monetary award, or fund for settling, a Claim against any Insured to the extent it alleges a loss to a Plan and/or loss in the actual accounts of participants in a Plan by reason of a change in value of the investments held by that Plan, including, but not limited to the securities of the Sponsor Organization, regardless of whether the amounts sought in such Claim have been characterized by plaintiffs as "benefits" or held by a court to be "benefits"; and (7) matters which may be deemed uninsurable under the law pursuant to which this policy shall be construed. Where permitted by law, Loss shall include punitive, exemplary and multiplied damages imposed upon any Insured (subject to this policy's other terms, conditions, and limitations, including, but not limited to the Conduct Exclusion). Enforceability of this paragraph shall be governed by the applicable law that most favors coverage for such penalties and punitive, exemplary, and multiplied damages. Defense Costs shall be provided for items specifically excluded from Loss pursuant to subparagraphs (1) - (7) above, subject to the other terms, conditions, and exclusions of this policy.



Managed Care Services	means the administration or management of a health care, pharmaceutical, vision or dental Plan utilizing cost control mechanisms, including, but not limited to utilization review, case management, disease management, pharmacy management, the use of a preferred provider medical, vision or dental network, or a health maintenance organization.
Management Control	means: (1) owning interests representing more than 50% of the voting, appointment or designation power for the selection of a majority of: the Board of Directors of a corporation; the management committee of a joint venture; or the management board of a limited liability company; or (2) having the right, pursuant to written contract or the by-laws, charter, operating agreement or similar documents of a Sponsor Organization, to elect, appoint or designate a majority of: the Board of Directors of a corporation; the management committee of a joint venture; or the management board of a limited liability company.
Multiemployer Plan	means any multiemployer plan, as defined by ERISA , which is operated jointly by the Sponsor Organization , a labor organization, and one or more other employers for the benefit of the employees of the Sponsor Organization among others.
Non-Indemnifiable Loss	means Loss that has not been indemnified by either a Sponsor Organization or a Plan , and for which a Sponsor Organization is not permitted or required to indemnify an Insured Person pursuant to law or contract or the charter, by-laws, operating agreement or similar documents of a Sponsor Organization .
Pension Crisis	has the meaning set forth in the Pension CrisisFundSM Appendix attached to this policy.
Pension CrisisFundSM	means the aggregate sublimit of liability set forth in the Declarations for all Pension Crisis Loss in the aggregate for all Pension Crises first occurring during the Policy Period or any applicable Discovery Period .
Pension Crisis Loss	has the meaning set forth in the Pension CrisisFundSM Appendix attached to this policy.
Plan	means any: (1) qualified or non-qualified plan, fund, trust or program, including, but not limited to any pension plan, welfare plan, health savings account plan, IRA-based plan, stock option plan, stock purchase plan, deferred compensation program, supplemental executive retirement program, top-hat plan, excess benefit plan, cafeteria plan, dependent care assistance program, fringe benefit plan or voluntary employees' beneficiary association as defined in the Internal Revenue Code of 1986, as amended ("VEBA") established anywhere in the world, which is sponsored solely by a Sponsor Organization, and with respect to a collectively bargained Plan, operated jointly by a Sponsor Organization and a labor organization, in each case solely for the benefit of such Sponsor Organization's current or former employees or Executives, and which was in existence on or before the inception of the Policy Period.

(2) plan described in subparagraph (1) above acquired during the **Policy Period**. However, if such plan is a pension plan:

- (a) acquired as a result of the **Sponsor Organization's** acquisition of a **Subsidiary** whose assets total more than 25% of the total consolidated assets of the **Sponsor Organization** as of the inception date of this policy; or
- (b) with assets that total more than 25% of the total consolidated assets of all covered pension plans as of the inception date of this policy;

then this policy shall apply to such plan (solely with respect to a **Wrongful Act(s)** occurring after the date of such acquisition), but only upon the condition that within ninety (90) days of its acquisition, the **Named Sponsor** shall have provided the **Insurer** with information and agreed to any additional premium or amendment of the provisions of the policy required by the **Insurer** relating to such new **Plan**. The ninety (90) day reporting condition shall not apply if such new plan is not one of the five largest pension plans (by asset size) of the **Sponsor Organization**, if the failure to report such **Plan** within the ninety (90) day reporting period was due to inadvertent omission by the **Named Sponsor**, and if upon discovery of such omission the **Named Sponsor** notifies the **Insurer** as soon as practicable and provides any information and pays any premium required by the **Insurer** relating to such **Plan**.

(3) plan or program described in subparagraph (1) above that was created, considered, developed or proposed during the **Policy Period**.

The definition of **Plan** shall also include the following government-mandated programs: unemployment insurance, Social Security, or disability payments, but solely with respect to a **Wrongful Act** defined in subparagraph (2) of the definition of **Wrongful Act** in this policy.

Coverage under this policy shall not extend to a **Multiemployer Plan** itself, its contributing employer(s) or, except as set forth in subparagraph (4) of the definition of **Wrongful Act**, any fiduciary or administrator of a **Multiemployer Plan**.

Plan Committee

means any employee benefit committee, including, but not limited to any plan investment or administration committee, that is established by a **Sponsor Organization** and that is comprised entirely of **Insured Persons**.

Policy Period

means the period of time from the inception date shown in Item 2 of the Declarations to the earlier of the expiration date shown in such Item 2 or the effective date of cancellation of this policy.



Securities Claim	means any Claim in which a plaintiff alleges a loss or seeks damages of more than the Securities Retention amount or \$1,000,000, whichever is less, based upon a change in or challenge to the price or valuation of securities of or issued by (i) the Sponsor Organization, (ii) the parent of the Sponsor Organization, (iii) any company that is acquired in whole or in part by the Sponsor Organization, or (iv) any former parent of any company that is acquired in whole or in part by the Sponsor Organization (hereinafter (i) through (iv) collectively referred to as "Employer Securities"), even if such Claim also contains unrelated allegations. The definition of Securities Claim shall not be triggered by any Claim in which plaintiffs allege a loss or seek damages as a result of a Plan's allegedly excessive fees or excessive cash holdings within an investment fund designed to hold Employer Securities as long as there is no allegation based upon a drop in the price or decrease in the valuation of the Employer Securities.
Securities Retention	means the Retention applicable to Loss that arises out of a Securities Claim .
Sponsor Organization	means: (1) the Named Sponsor; (2) each Subsidiary; (3) in the event a bankruptcy proceeding shall be instituted by or against any of the foregoing entities, the resulting debtor-in-possession (or equivalent status outside the United States of America), if any; and (4) in any Foreign Jurisdiction, a Corporate Trustee Company.
Subsidiary	means any past, present or future: (1) for-profit entity of which the Named Sponsor has or had Management Control either directly or indirectly through one or more of its other Subsidiaries; and (2) not-for-profit entity sponsored exclusively by a Sponsor Organization. The term Subsidiary shall automatically apply to any new Subsidiary acquired or created during the Policy Period. A for-profit entity ceases to be a Subsidiary when the Named Sponsor no longer maintains Management Control of such entity either directly or indirectly through one or more of its Subsidiaries. A not-for-profit entity ceases to be a Subsidiary when such entity is no longer sponsored exclusively by a Sponsor Organization.
Transaction	means: (1) the Named Sponsor consolidating with or merging into another entity such that the Named Sponsor is not the surviving entity, or selling all or substantially all of its assets to any other person or entity or group of persons or entities acting in concert; or (2) any person or entity or group of persons or entities acting in concert acquiring Management Control of the Named Sponsor.



**Voluntary
Compliance Loss**

means fines, penalties, sanctions, and reasonable and necessary fees, costs or expenses related to the assessment of or correction of a **Plan's** non-compliance in accordance with any **Voluntary Compliance Program** and which are incurred during the **Policy Period** (or during the policy period of a policy issued by the **Insurer** of which this policy is a continuous renewal).

"Voluntary Compliance Loss" shall not include any compensation of any **Insured Persons** or any employee of an **Insured**.

**Voluntary
Compliance
Program**

means any voluntary compliance resolution program or similar voluntary settlement program administered by the DOL, IRS, PBGC or other similar governmental authority or any similar program administered by any governmental authority located outside the United States of America, to correct any inadvertent non-compliance by a **Plan**, including, but not limited to:

- (1) Employee Plans Compliance Resolution System;
- (2) Delinquent Filer Voluntary Compliance Program;
- (3) Voluntary Fiduciary Correction Program;
- (4) Premium Compliance Evaluation Program; and
- (5) Participant Notice Voluntary Correction Program.

Wrongful Act

means:

- (1) any actual or alleged violation by an **Insured** of any of the responsibilities, obligations or duties imposed upon fiduciaries by **Employee Benefit Law** with respect to a **Plan**, including, but not limited to the actual or alleged improper selection of or inadequate monitoring of third-party service providers; or any allegation made against an **Insured** solely by reason of his, her or its actual or alleged status as a fiduciary, but only with respect to a **Plan**;
- (2) any actual or alleged act, error or omission by an **Insured** in the **Administration** of any **Plan**, including, but not limited to the actual or alleged failure to properly and timely provide COBRA notices or other required notices, the alleged failure to make timely determinations of eligibility for benefits; or any allegation made against an **Insured** solely by reason of his, her or its actual or alleged **Administration** of a **Plan**;
- (3) any negligent act, error or omission by a **Sponsor Organization**, its **Executives** or employees in facilitating the administration of a **Multiemployer Plan**; and
- (4) if a plan identified as a **Multiemployer Plan** is referenced by specific written endorsement attached to this policy and any required premium is paid, any matter arising out of an **Insured Person's** actual or alleged service as a fiduciary of, or actual or alleged **Administration** of, such **Multiemployer Plan** when such service or **Administration** is at the specific written request or direction of the **Sponsor Organization**.

APPENDIX A
EMPLOYEE BENEFIT PLAN FIDUCIARY LIABILITY
PANEL COUNSEL LIST

In consideration of the premium charged, it is understood and agreed as follows: The information in our Panel Counsel lists/appendices is now accessible through our online Panel Counsel Directory at AIG Panel Counsel Directory <http://www.aig.com/us/panelcounseldirectory>. To access the applicable online Panel Counsel Directory, please go to the website, click on the "Fiduciary Liability (ERISA and Non-ERISA)" link.

References in this policy to list of Panel Counsel law firms or related appendices are deemed amended to refer to the applicable Panel Counsel Directories at the website referenced above.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.

I. DEFINITIONS

"Pension Crisis" means one of the following:

A. Investment Loss in a Covered **Plan**

A loss in the total assets of a covered **Plan** of 25% or more in a thirty (30) day period caused by investment loss or a loss in a specific **Plan** investment of 75% or more in a thirty (30) day period, which may be alleged to have a material effect on a covered **Plan**.

B. Third Party Service Provider Issues

The public announcement of: (i) a **Plan's** Third Party Service Provider's fraud, arrest, indictment, bankruptcy, layoff of employees, or (ii) a governmental or regulatory agency's investigation into or litigation against a **Plan's** Third Party Service Provider.

C. **Material Effect on a Sponsor Organization's Common Stock Price**

An event, which in the good faith opinion of the Chief Financial Officer of a **Sponsor Organization** caused or is reasonably likely to cause a **Material Effect on a Sponsor Organization's Common Stock Price**:

(i) Negative earning or sales announcement

The public announcement of a **Sponsor Organization's** past or future earnings or sales, which is substantially less favorable than any of the following: (i) a **Sponsor Organization's** prior year's earnings or sales for the same period; (ii) a **Sponsor Organization's** prior public statements or projections regarding earnings or sales for such period; or (iii) an outside securities analyst's published estimate of a **Sponsor Organization's** earnings or sales causing **Loss** in the **Plan's** investments in securities of or issued by (i) the **Sponsor Organization**, (ii) the parent of the **Sponsor Organization**, (iii) any company acquired in whole or in part by the **Sponsor Organization**, or (iv) any former parent of any company acquired in whole or in part by the **Sponsor Organization**.

(ii) Mass tort

The public announcement or accusation that a **Sponsor Organization** has caused the bodily injury, sickness, disease, death or emotional distress of a group of persons, or damage to or destruction of any tangible group of properties, including the loss of use thereof.

(iii) Employee layoffs or loss of key executive officer(s)

The public announcement of layoffs of employees of a **Sponsor Organization**. The death or resignation of one or more key **Executives** of the **Named Sponsor**.

- (iv) Write-off of assets
The public announcement that a **Sponsor Organization** intends to write off a material amount of its assets.
- (v) Debt restructuring or default
The public announcement that a **Sponsor Organization** has defaulted or intends to default on its debt or intends to engage in a debt restructuring.
- (vi) Bankruptcy
The public announcement that a **Sponsor Organization** intends to file for bankruptcy protection or that a third party is seeking to file for involuntary bankruptcy on behalf of a **Sponsor Organization**; or that bankruptcy proceedings are imminent, whether voluntary or involuntary.
- (vii) Governmental or regulatory agency litigation
The public announcement of the commencement or threat of litigation or of governmental or regulatory agency proceedings against a **Sponsor Organization**.
- (viii) Unsolicited takeover bid
An unsolicited written offer or bid by any person or entity other than an **Insured** or any affiliate of any **Insured**, whether publicly announced or privately made to an **Executive** of a **Sponsor Organization**, to effect a **Transaction** of the **Named Sponsor**.

A **Pension Crisis** shall first commence when a **Sponsor Organization** or any of its **Executives** first becomes aware of such **Pension Crisis**. A **Pension Crisis** shall conclude when a **Crisis Firm** advises a **Sponsor Organization** that such **Pension Crisis** no longer exists, the **Named Sponsor** determines such **Pension Crisis** no longer exists, or when the **Pension CrisisFund**SM has been exhausted, whichever occurs first.

"**Crisis Firm**" means any public relations firm, crisis management firm or law firm on the list of approved firms that is accessible through the online directory at <http://www.aig.com/us/panelcounseldirectory> under the "**CrisisFund**SM" link. Once notice has been given of a **Pension Crisis** in accordance with Clause 8.A. of the policy, any "**Crisis Firm**" may be hired by a **Sponsor Organization** to perform **Crisis Services** without further approval by the **Insurer**.

"**Pension Crisis Loss**" means the following costs, subject to the sublimit of liability in the **Pension CrisisFund**SM set forth in the Declarations, incurred during the pendency of a **Pension Crisis** for which a **Sponsor Organization** is legally liable:

- (1) the reasonable and necessary fees and expenses incurred by a **Crisis Firm** in the performance of **Crisis Services** for a **Sponsor Organization**;
- (2) the reasonable and necessary fees and expenses incurred in the printing, advertising or mailing of materials; and

- (3) travel expenses incurred by **Executives**, employees or agents of a **Sponsor Organization** or of the **Crisis Firm**, arising from or in connection with the **Pension Crisis**.

"**Crisis Services**" means those services performed by a **Crisis Firm** in advising an **Insured** or any employee of a **Sponsor Organization** on minimizing potential harm to a **Sponsor Organization** from the **Pension Crisis** (including, but not limited to, maintaining and restoring investor confidence in a **Sponsor Organization**).

"**Material Effect on a Sponsor Organization's Common Stock Price**" means, within a period of 24 hours, that the price per share of a **Sponsor Organization's** common stock shall decrease by \$2.00, or 15% net of the percentage change in the Standard & Poor's Composite Index, whichever is greater.

II. EXCLUSIONS

The term **Pension Crisis** shall not include any event relating to any **Claim** which has been reported, or any circumstances of which notice has been given, under any policy of which this policy is a renewal or replacement or which it may succeed in time.

ENDORSEMENT# 1

This endorsement, effective **at 12:01AM June 16, 2025**

forms a part of

Policy number: **01-546-82-19**

Issued to: **ANIXA BIOSCIENCES, INC.**

By: *National Union Fire Insurance Company of Pittsburgh, Pa.*

E-CONSULTANT FIRM AMENDATORY

In consideration of the premium charged, it is hereby understood and agreed that notwithstanding any provision to the contrary (including but not limited to any endorsement attached to this policy), if this policy, other than by this endorsement, defines the term "**E-Consultant Firm**", such term as used in this policy shall mean any firm hired by the **Insured** (or the **Insured's** counsel on the **Insured's** behalf) that is qualified to perform **E-Discovery Consultant Services**, provided that nothing herein shall be deemed a waiver of (or otherwise supersede) any requirements under this policy for the **Insured** to:

- (1) attain the prior written consent of the **Insurer** before incurring **Defense Costs** or any other **Loss** of any kind; or
- (2) retain an approved **Panel Counsel Firm**.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



AUTHORIZED REPRESENTATIVE

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END 001

ENDORSEMENT# 2

This endorsement, effective *12:01 am June 16, 2025* forms a part of
policy number *01-546-82-19*
issued to *ANIXA BIOSCIENCES, INC.*

by *National Union Fire Insurance Company of Pittsburgh, Pa.*

**NOTICE OF CLAIM
(REPORTING BY E-MAIL)**

In consideration of the premium charged, it is hereby understood and agreed as follows:

1. *Email Reporting of Claims:* In addition to the postal address set forth for any Notice of Claim Reporting under this policy, such notice may also be given in writing pursuant to the policy's other terms and conditions to the Insurer by email at the following email address:

c- claim@AIG.com

Your email must reference the policy number for this policy. The date of the Insurer's receipt of the emailed notice shall constitute the date of notice.

In addition to Notice of Claim Reporting via email, notice may also be given to the Insurer by mailing such notice to: AIG, Financial Lines Claims, P.O. Box 25947, Shawnee Mission, KS 66225 or faxing such notice to (866) 227- 1750.
2. *Definitions:* For this endorsement only, the following definitions shall apply:
 - (a) "Insurer" means the "Insurer," "Underwriter" or "Company" or other name specifically ascribed in this policy as the insurance company or underwriter for this policy.
 - (b) "Notice of Claim Reporting" means "notice of claim/circumstance," "notice of loss" or other reference in the policy designated for reporting of claims, loss or occurrences or situations that may give rise or result in loss under this policy.
 - (c) "Policy" means the policy, bond or other insurance product to which this endorsement is attached.
3. This endorsement does not apply to any Kidnap & Ransom/Extortion Coverage Section, if any, provided by this policy.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT# 3

This endorsement, effective *12:01 am June 16, 2025* forms a part of
policy number *01-546-82-19*
issued to *ANIXA BIOSCIENCES, INC.*

by *National Union Fire Insurance Company of Pittsburgh, Pa.*

CALIFORNIA AMENDATORY ENDORSEMENT

Wherever used in this endorsement: 1) "Insurer" mean the insurance company which issued this policy; and 2), "Named Insured", "First Named Insured", and "Insured" mean the Named Corporation, Named Entity, Named Organization, Named Sponsor, Named Insured, or Insured stated in the declarations page; and 3) "Other Insured(s)" means all other persons or entities afforded coverage under the policy.

The following is added and supersedes any provision to the contrary:

CANCELLATION

The First Named Insured shown in the declarations may cancel the policy by mailing or delivering to the Insurer advance written notice of cancellation.

If the policy has been in effect for more than sixty (60) days or if it is a renewal, effective immediately, the Insurer may not cancel the policy unless such cancellation is based on one or more of the following reasons:

- (1) Nonpayment of premium, including payment due on a prior policy issued by the Insurer and due during the current policy term covering the same risks.
- (2) A judgment by a court or an administrative tribunal that the named Insured has violated any law of this state or of the United States having as one of its necessary elements an act which materially increases any of the risks insured against.
- (3) Discovery of fraud or material misrepresentation by either of the following:
 - a) The Insured or Other Insured(s) or his or her representative in obtaining the insurance; or
 - b) The named Insured or his or her representative in pursuing a claim under the policy.
- (4) Discovery of willful or grossly negligent acts or omissions, or of any violations of state laws or regulations establishing safety standards, by the named Insured or Other Insured(s) or a representative of same, which materially increase any of the risks insured against.
- (5) Failure by the named Insured or Other Insured(s) or a representative of same to implement reasonable loss control requirements which were agreed to by the Insured as a condition of policy issuance or which were conditions precedent to the use by the Insurer of a particular rate or rating plan if the failure materially increases any of the risks insured against.
- (6) A determination by the commissioner that the loss of, or changes in, an insurer's reinsurance covering all or part of the risk would threaten the financial integrity or solvency of the Insurer.

ENDORSEMENT# 3 (continued)

- (7) A determination by the commissioner that a continuation of the policy coverage could place the Insurer in violation of the laws of this state or the state of its domicile or that the continuation of coverage would threaten the solvency of the Insurer.
- (8) A change by the named Insured or Other Insured(s) or a representative of same in the activities or property of the commercial or industrial enterprise which results in a material added risk, a materially increased risk or a materially changed risk, unless the added, increased, or changed risk is included in the policy.

Notice of cancellation shall be delivered or mailed to the producer of record and the named Insured at least thirty (30) days prior to the effective date of cancellation. Where cancellation is for nonpayment of premium or fraud, notice shall be given no less than ten (10) days prior to the effective date of cancellation.

CONDITIONAL RENEWAL AND NONRENEWAL

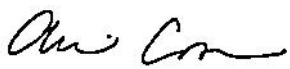
If the Insurer decides not to renew the policy, or to increase the deductible, reduce the limits, eliminate coverages or raise premium more than 25%, the Insurer shall mail or deliver to the producer of record and the named Insured notice of nonrenewal at least sixty (60) days but no more than 120 days prior to the end of the policy period. The notice shall contain the reason for nonrenewal of the policy.

A notice of nonrenewal shall not be required in the following situations:

- (1) If the transfer or renewal of a policy, without any changes in terms, conditions or rates, is between the Insurer and a member of the insurance group.
- (2) If the policy has been extended for 90 days or less, provided that notice has been given in accordance with the nonrenewal notice requirements noted above.
- (3) If the Named Insured has obtained replacement coverage, or has agreed, in writing, within 60 days of the termination of the policy, to obtain that coverage.
- (4) If the policy is for a period of no more than 60 days and the Insured is notified at the time of issuance that it will not be renewed.
- (5) If the First Named Insured requests a change in the terms or conditions or risks covered by the policy within 60 days of the end of the policy period.
- (6) If the Insurer has made a written offer to the First Named Insured, in accordance with timeframes shown above to renew the policy under changed terms or conditions or at an increased premium rate.

If the Insurer fails to give timely notice, the policy of insurance shall be continued, with no change in its terms or conditions, for a period of 60 days after the Insurer gives notice.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT# 4

This endorsement, effective *12:01 am June 16, 2025* forms a part of
policy number *01-546-82-19*
issued to *ANIXA BIOSCIENCES, INC.*

by *National Union Fire Insurance Company of Pittsburgh, Pa.*

BANKRUPTCY WAIVER ADDED

In consideration of the premium charged, it is hereby understood and agreed that Clause 3.C. *Bankruptcy And Insolvency* is amended by adding the following to the end thereof:

It is further understood and agreed that the coverage provided under this policy is intended to protect and benefit the **Insured Persons**. Further, if a liquidation or reorganization proceeding is commenced by the **Named Sponsor** and/or any other **Sponsor Organization** (whether voluntarily or involuntarily) under Title 11 of the United States Code (as amended), or any similar state, local or foreign law (collectively "**Bankruptcy Law**") then, in regard to a covered **Claim** under this policy, the **Insureds** hereby:

- (a) waive and release any automatic stay or injunction to the extent it may apply in such proceeding to the proceeds of this policy under such **Bankruptcy Law**; and
- (b) agree not to oppose or object to any efforts by the **Insurer** or any **Insured** to obtain relief from any stay or injunction applicable to the proceeds of this policy as a result of the commencement of such liquidation or reorganization proceeding.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 004

ENDORSEMENT# 5

This endorsement, effective *12:01 am June 16, 2025* forms a part of
policy number *01-546-82-19*
issued to *ANIXA BIOSCIENCES, INC.*

by *National Union Fire Insurance Company of Pittsburgh, Pa.*

**LOSS AMENDED
APPLICABLE LAW**

In consideration of the premium charged, it is hereby understood and agreed that Clause 14. DEFINITIONS is amended by adding the following to the end of the second paragraph of the definition of **Loss**:

Applicable law shall include, but not be limited to, the address or place of domicile of the **Insurer**, any **Sponsor Organization's** place of domicile, the address of the **Named Sponsor** or of any other **Sponsor Organization** involved in the **Claim**, or the place of residence of any **Insured Person** involved in the **Claim**.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 005

ENDORSEMENT# 6

This endorsement, effective *12:01 am June 16, 2025* forms a part of
policy number *01-546-82-19*
issued to *ANIXA BIOSCIENCES, INC.*

by *National Union Fire Insurance Company of Pittsburgh, Pa.*

SETTLOR CAPACITY AMENDATORY

In consideration of the premium charged, it is hereby understood and agreed that the policy is amended as follows:

I.

In Clause 2.A. *Disproven Allegation Protection* , paragraph (2) is deleted in its entirety.

II.

In Clause 14. DEFINITIONS, the definition of "**Wrongful Act**" is amended to include any actual or alleged act, error or omission by an **Insured** in a settlor capacity as respects a **Plan**.

III.

Solely with respect to the coverage afforded under this endorsement, in Clause 14. DEFINITIONS, the definition of "**Insured Person**" is amended to include the following at the end thereof:

"**Insured Person**" also means, solely with respect to a **Plan**, any past, present or future **Executive** or employee of a **Sponsor Organization** in his or her settlor capacity as respects a **Plan**.

IV.

Solely with respect to the coverage afforded under this endorsement, in Clause 14. DEFINITIONS, the definition of "**Insured**" is amended by deleting subparagraph (4) thereof in its entirety and replacing it with the following:

(4) **Plan Committee** of a **Sponsor Organization**, in its capacity as a fiduciary, trustee or settlor of a **Plan**, or in its **Administration** of a **Plan**; or

ALL OTHER TERMS, CONDITIONS AND LIMITATIONS REMAIN UNCHANGED.



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END 006

ENDORSEMENT# 7

This endorsement, effective at 12:01 am June 16, 2025 forms a part of
Policy number 01-546-82-19
Issued to: ANIXA BIOSCIENCES, INC.

By: National Union Fire Insurance Company of Pittsburgh, Pa.

Product Name: Fiduciary Liability Insurance Edge

AFFORDABLE CARE ACT COVERAGE EXTENSION

In consideration of the additional premium of \$0, it is hereby understood and agreed that the policy is amended as follows:

I.

Clause 2. **EXTENSIONS**, is amended to include the following at the end thereof:

AA. Affordable Care Act Coverage

This policy shall pay the **Loss** of an **Insured** arising from a **Claim** made against such **Insured** for any **Healthcare Exchange Wrongful Act**.

II.

Solely with respect to the coverage afforded under this endorsement, in Clause 14. **DEFINITIONS**, the definition of "**Wrongful Act**" is amended to include the following at the end thereof:

"**Wrongful Act**" also means any **Healthcare Exchange Wrongful Act**.

III.

As used herein, the following terms have the following meanings:

"**Healthcare Exchange**" means any public, private or government-sponsored entity set up to facilitate the purchase of health insurance in accordance with the Patient Protection and Affordable Care Act.

"**Healthcare Exchange Wrongful Act**" means any actual or alleged act, error or omission by an **Insured** in connection with insurance purchased through, or attempted to be purchased through, a **Healthcare Exchange**.

IV.

Solely with respect to the coverage afforded by this endorsement, the term "**Plan**" is amended to include any **Healthcare Exchange**, but no coverage shall be provided for such **Healthcare Exchange**.

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END 007

V.

Solely with respect to the coverage provided by this endorsement, in the event that the **Insured's** business is that of an insurer, insurance provider, or insurance exchange provider or marketplace, then the **Insurer** shall not be liable to make any payment for **Loss** in connection with such business, including but not limited to any professional services related thereto.

VI.

Further, coverage as is afforded by virtue of this endorsement shall apply excess of any other valid and collectible insurance under which payment of the claim is required or actually made. If said other insurance is provided by the **Insurer** or any other insurance company thereof (or would be provided but for the application of the retention amount or the exhaustion of the limit of liability) (herein, "**Other Policy**"), then the **Insurer's** maximum aggregate limit of liability for all **Loss** combined in connection with a **Claim** covered, in part or in whole, by this policy and such **Other Policy**, shall not exceed the greater of the **Limit** of Liability set forth on the Declarations page of this policy or the limit of liability of such **Other Policy**.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 007

ENDORSEMENT# 8

This endorsement, effective *12:01 am June 16, 2025* forms a part of
policy number *01-546-82-19*
issued to *ANIXA BIOSCIENCES, INC.*

by *National Union Fire Insurance Company of Pittsburgh, Pa.*

KNOWN WRONGFUL ACT EXCLUSION

In consideration of the premium charged, it is hereby understood and agreed that the **Insurer** shall not be liable to make any payment for **Loss** in connection with any **Claim** made against any **Insured** alleging any **Wrongful Act** occurring prior to *August 1, 2024*, if as of *August 1, 2024* any **Insured** knew or could have reasonably foreseen that such **Wrongful Act** could lead to a **Claim** under this policy. **Loss** arising out of the same or related **Wrongful Act** shall be deemed to arise from the first such same or related **Wrongful Act**.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 008

ENDORSEMENT# 9

This endorsement, effective *12:01 am June 16, 2025* forms a part of
policy number *01-546-82-19*
issued to *ANIXA BIOSCIENCES, INC.*

by *National Union Fire Insurance Company of Pittsburgh, Pa.*

**LOSS AMENDED
CLEANUP COSTS**

In consideration of the premium charged, it is hereby understood and agreed that the definition of "**Loss**" is amended by deleting subparagraph (3) thereof and replacing it with the following:

- (3) cleanup costs relating to hazardous materials, pollution or product defects that result in the release of hazardous materials or pollutants;

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 009

ENDORSEMENT# 10

This endorsement, effective *12:01 am June 16, 2025* forms a part of
policy number *01-546-82-19*
issued to *ANIXA BIOSCIENCES, INC.*

by *National Union Fire Insurance Company of Pittsburgh, Pa.*

DEFINITION OF "PLAN COMMITTEE" AMENDED

In consideration of the premium charged, it is hereby understood and agreed that the definition of "**Plan Committee**" is deleted in its entirety and replaced with the following:

Plan Committee means any employee benefit committee, including, but not limited to any plan investment or administration committee, that is established by a **Sponsor Organization**; provided, however, there shall be no coverage for any member of any **Plan Committee** who is not an **Insured Person**.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



AUTHORIZED REPRESENTATIVE

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END 010

ENDORSEMENT# 11

This endorsement, effective **at 12:01AM June 16, 2025**

forms a part of

Policy number: **01-546-82-19**

Issued to: **ANIXA BIOSCIENCES, INC.**

By: *National Union Fire Insurance Company of Pittsburgh, Pa.*

**SPOUSAL, DOMESTIC PARTNER AND LEGAL REPRESENTATIVE EXTENSION AMENDED
(TRUST OR ESTATE PLANNING VEHICLE; ESTABLISHED BY AN INSURED PROGRAM)**

In consideration of the premium charged, it is hereby understood and agreed that the second paragraph of Clause 2.F. *Spousal, Domestic Partner And Legal Representative Extension* is deleted in its entirety and replaced with the following:

This policy shall pay covered **Loss** arising from a **Claim** made against the estates, heirs, or legal representatives of any deceased **Insured Person**, or any **Claim** against a trust or estate planning vehicle of an **Insured Person**, and the legal representatives of any **Insured Person** in the event of incompetence, insolvency or bankruptcy, who was an **Insured Person** at the time the alleged **Wrongful Acts** upon which such **Claim** is based were alleged to have been committed.

As used in this clause, "legally recognized domestic partner" shall include any natural person qualifying as a domestic partner under the provisions of any formal program established by the **Named Sponsor** or any **Subsidiary**.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



AUTHORIZED REPRESENTATIVE

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END 011

ENDORSEMENT# 12

This endorsement, effective at *12:01 am June 16, 2025* forms a part of
Policy number *01-546-82-19*
Issued to: *ANIXA BIOSCIENCES, INC.*

By: *National Union Fire Insurance Company of Pittsburgh, Pa.*

Product Name: *Fiduciary Liability Insurance Edge*

**FEDERAL SHARE OF COMPENSATION UNDER TRIA AND CAP ON LOSSES
ENDORSEMENT**

This endorsement modifies insurance provided by this Policy:

DISCLOSURE

You should know that where coverage is provided by this Policy for losses resulting from "Certified Acts of Terrorism" (as defined by Section 102 (1) of United States Terrorism Risk Insurance Act), such losses may be partially reimbursed by the United States Government under a formula established by federal law. However, your Policy may contain other exclusions which might affect your coverage such as, an exclusion for nuclear events. Under the formula, the United States Government generally reimburses 85% through 2015; 84% beginning on January 1, 2016; 83% beginning on January 1, 2017; 82% beginning January 1, 2018; 81% beginning January 1, 2019 and 80% beginning on January 1, 2020, of covered terrorism losses exceeding the statutorily established deductible paid by the insurance company providing the coverage.

You should also know that the Terrorism Risk Insurance Act, as amended, contains a \$100 billion cap that limits United States Government reimbursement as well as insurers' liability for losses resulting from "Certified Acts of Terrorism" when the amount of such losses in any one calendar year exceeds \$100 billion. If the aggregate insured losses for all insurers exceed \$100 billion in a calendar year and if we have met our insurer deductible, we are not liable for the payment of any portion of the amount of such losses that exceeds \$100 billion; and for aggregate insured losses up to \$100 billion, we will only pay a pro rata share of such insured losses as determined by the Secretary of the Treasury.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 012

ENDORSEMENT# 13

This endorsement, effective at *12:01 am June 16, 2025* forms a part of
Policy number *01-546-82-19*
Issued to: *ANIXA BIOSCIENCES, INC.*

By: *National Union Fire Insurance Company of Pittsburgh, Pa.*

Product Name: *Fiduciary Liability Insurance Edge*

ECONOMIC SANCTIONS ENDORSEMENT

This endorsement modifies insurance provided under the following:

Coverage shall only be provided and payment of loss under this policy shall only be made in full compliance with enforceable United Nations economic and trade sanctions and the trade and economic sanction laws or regulations of the European Union and the United States of America, including, but not limited to, sanctions, laws and regulations administered and enforced by the U.S. Treasury Department's Office of Foreign Assets Control ("OFAC").

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 013

ENDORSEMENT# 14

This endorsement, effective *12:01 am June 16, 2025* forms a part of
policy number *01-546-82-19*
issued to *ANIXA BIOSCIENCES, INC.*

by *National Union Fire Insurance Company of Pittsburgh, Pa.*

FORMS INDEX ENDORSEMENT

The contents of the Policy is comprised of the following forms:

FORM NUMBER	EDITION DATE	FORM TITLE
105939	07/10	FIDUCIARY INSURANCE EDGE ADMITTED DEC
96556	01/15	TRIA DEC DISCLOSURE FORM
106075	07/10	FIDUCIARY INSURANCE EDGE US GUTS
99544	07/08	EMPLOYEE BENEFIT PLAN FIDUCIARY LIABILITY PANEL COUNSEL
106002	07/10	PENSION CRISISFUND APPENDIX
148630	05/23	E-Consultant Firm Amendatory
99758	08/08	NOTICE OF CLAIM (REPORTING BY E-MAIL)
52133	03/07	CALIFORNIA AMENDATORY - CANCELLATION/NONRENEWAL
111404	08/12	BANKRUPTCY WAIVER ADDED
111407	08/12	LOSS AMENDED APPLICABLE LAW
111416	08/12	SETTLOR CAPACITY AMENDATORY
117198	01/14	AFFORDABLE CARE ACT COVERAGE EXTENSION
106043	07/10	KNOWN WRONGFUL ACT EXCLUSION
107072	10/10	LOSS AMENDED (CLEANUP COSTS)
107591	01/11	DEFINITION OF PLAN COMMITTEE AMENDED
128756	03/18	SPOUSAL, DOMESTIC PARTNER AND LEGAL REPRESENTATIVE EXTENSION AMENDED
125595	03/17	FEDERAL SHARE OF COMPENSATION UNDER TRIA AND CAP ON LOSSES ENDORSEMENT
119679	09/15	ECONOMIC SANCTIONS ENDORSEMENT
78859	10/01	FORMS INDEX ENDORSEMENT

ENDORSEMENT# 14

This endorsement, effective *12:01 am June 16, 2025* forms a part of
policy number *01-546-82-19*
issued to *ANIXA BIOSCIENCES, INC.*

by *National Union Fire Insurance Company of Pittsburgh, Pa.*

FORMS INDEX ENDORSEMENT

The contents of the Policy is comprised of the following forms:

FORM NUMBER	EDITION DATE	FORM TITLE
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ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



AUTHORIZED REPRESENTATIVE



CLAIM REPORTING FORM

Issuing Company: *National Union Fire Insurance Company of Pittsburgh, Pa.*

Reported under Policy/Bond Number: 01-546-82-19 Date: _____

Type of Coverage: D&O _____ E&O _____ Fidelity _____ (complete the Fidelity Supplemental on the next page)

Insured's Name, as given on Policy Declarations (Face Page):

ANIXA BIOSCIENCES, INC.

Contact Person: _____

Title: _____

Phone: (_____) _____ - _____ Ext _____

eMail: _____ @ _____

Case or Claimant Name: _____

If the party involved is different from "Insured" Name (as given on Policy Declarations) state relationship:

Insurance Broker/Agent: MARSH & MCLENNAN AGENCY LLC

Address: 250 PEHLE AVENUE, STE. 400

Address: SADDLE BROOK, NJ 07663

Contact: Denise Recifo Phone: _____

eMail: Denise.Recifo@MarshMMA.com

Send Notice of Claims to:

AIG
Financial Lines Claims
P.O. Box 25947
Shawnee Mission, KS 66225

Phone: (888) 602- 5246
Fax: (866) 227- 1750
Email: [c- Claim@AIG.com](mailto:c-Claim@AIG.com)



**CLAIM REPORTING FORM
FIDELITY SUPPLEMENTAL**

(Only complete this supplemental if the Claim is being reported under Fidelity Coverage)

Issuing Company: *National Union Fire Insurance Company of Pittsburgh, Pa.*

Reported under Policy/Bond Number: 01-546-82-19

Date of Discovery: _____ Estimated Amount of loss: _____

Cause of Loss:	Employee Dishonesty	_____	Computer Fraud	_____
	Funds Transfer	_____	Robbery/Burglary	_____
	ID Theft	_____	Forgery	_____
	Client Property	_____	In Transit	_____
	ERISA	_____	Credit Card Forgery	_____
	Other	_____	if Other, describe:	_____

Send Notice Of Claims To: AIG
Financial Lines Claims
P.O. Box 25947
Shawnee Mission, KS 66225

Phone: (888) 602- 5246
Fax: (866) 227- 1750
Email: [c- Claim@AIG.com](mailto:c-Claim@AIG.com)